

25NWCV00196 25NWCV00196

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-25

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Case Number: 25NWCV00196 Hearing Date: August 25, 2026 Dept: R

#16

TRAN v. LA

MIRADA POST ACUTE, LLC, ET AL.

CASE NO.: 25NWCV00196

HEARING: Tuesday, August
25, 2026, at 9:30 AM

Plaintiff KIM TRAN's Motion to Compel Defendant Compel the
Deposition of Defendant LA MIRADA POST ACUTE LLC's ("Defendant") Person Most
Knowledgeable is CONTINUED to Thursday, January 7, 2027, at 9:30 AM
in Dept. SE-R.

Plaintiff to give notice.

Background

On January 15, 2025, Plaintiff KIM TRAN, by and through
her Attorney in Fact, Francis Tran ("Plaintiff") filed this elder abuse
action against Defendants LA MIRADA POST ACUTE LLC; SUN MERIDIAN
MANAGEMENT SERVICES LLC; FRANK D. JOHNSON; DAVID JOHNSON; and DOES 1 through
250.

The Complaint alleges that "about August 2024, KIM TRAN was admitted to the
FACILITY suffering from a prior stroke. As a result, KIM TRAN'S family was
unable to provide the level of care she required at home. KIM

TRAN required assistance with her activities of daily living.

KIM TRAN suffered from both side weakness and was unable to walk. [¶] On or about December 28, 2024, KIM TRAN was sexually assaulted by a FACILITY employee who touched KIM TRAN'S breasts and put his fingers inside KIM TRAN'S vagina without her consent.... Additionally, DOE 1 forcibly grabbed KIM TRAN's arm and tried to make KIM TRAN touch his genitals but KIM TRAN refused and pushed her call button." (Complaint ¶¶28-29.)

Plaintiff's Complaint asserts the following causes of action:

(1) Elder Abuse; and

(2) Assault and Battery.

On July 14, 2026, Plaintiff filed the instant motion to Compel the Deposition Defendant LA MIRADA POST ACUTE LLC's ("Defendant") Person Most Knowledgeable.

Legal Standard

Pursuant to CCP §2025.450, if after service of a deposition notice, a party to the action, without having served a valid objection, fails to appear for examination, or proceed with it, or to produce for inspection any document, the party giving notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document. (CCP §2025.450(a).)

On June 24, 2026, Plaintiff served a Notice of Deposition for Defendant's Person Most Knowledgeable, setting deposition for July 7, 2026. On July 2, 2026, Defendant served Notice of Objection. Counsel then exchanged meet and confer letters. Ultimately, Defendant filed and served a Motion for Protective Order. Defendant's Motion for Protective Order is set for Thursday, January 7, 2027.

In the interest of judicial efficiency, the Court continues the instant motion to be heard in conjunction with Defendant's Motion for Protective Order.

However, the Court recognizes the January 7, 2027, date will

impede Plaintiff's ability to obtain discovery. Thus, during the hearing on the instant matter, Counsel are to confer with the Court to choose an earlier date to argue both matters.

Notwithstanding, the Counsel are ORDERED to make further efforts to resolve the issues presented.

Counsel are advised that their meet and confer efforts should go beyond merely sending letters stating their respective positions. (See *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) Counsel are ORDERED to engage in a live meet and confer prior to the continued hearing date.

If counsel are unable to informally resolve their discovery disputes, then counsel are instructed to submit a JOINT STATEMENT outlining the remaining disputed issues for which a ruling is required. The joint statement must be FILED on or before the Friday preceding the continued agreed upon hearing date.